

Authority (78.9%), Data Controller (98.7%), Data Protection Officer (77.3%), Data Subject (71.1%), Legal Basis (95.4%), Organisational Measure (69.1%), Personal Data (99.8%), Processing (98.1%), Recipient (87.4%), Required Purpose (70.8%), Right (64.9%), Third Party (91.9%):

Privacy Policy I am a Landlord How it works Favourites Help
enDeutschEnglishEspañolFrançaisItalianoPortuguês Privacy Policy Last update: 20 May 2020 This privacy policy describes the way in which we collect, use, process, and transfer your personal data, for what purposes and on what legal grounds.

Personal Data (97.9%), Processing (97.5%), Required Purpose (61.3%):

For your information, SPOTAHOME S.L.U is the legal person responsible for the processing of data, i.e., is in charge of protecting the privacy and security of your personal information.

Data Protection Officer (85.7%), Non-Personal Data (60.4%), Personal Data (99.3%), Required Purpose (98.0%):

For any matter related to the processing of your personal data, please contact us via email at privacy@spotahome.com, and our Privacy team (or the Data Protection Officer, where applicable) will reply to your query at the earliest convenience.

Consent (97.0%), Non-Personal Data (68.7%), Personal Data (73.3%):

If you would like to cancel you account which will include the deletion of your personal data and the unsubscription from any communication you can do it directly in the option included in our Contact Form available at <https://www.spotahome.com/contact-us>.

Personal Data (99.6%), Processing (83.9%), Required Purpose (88.9%):

2.1 Data provided by you a) Registration as a tenant and information required to make a booking request: In order to create a user account, you need to provide us with your name, last name(s) and email address.

Right (60.4%), Third Party (89.1%):

You may as well register via Facebook or Google.

Personal Data (99.8%):

If you make a booking request you will have to provide us with additional data such as name, surname, date of birth, gender, nationality, professional or academic information, a short description about yourself, phone number, salary (if applicable) and your card details or PayPal details (payment method).

Personal Data (98.8%):

Additionally, in certain cases, we may ask you to provide (or upload) your Government ID Card ,

Driving License or passport, proof of funds and residency.

Third Party (96.3%):

your parents) or a third party has paid for your booking, you shall provide the latter information from the guarantor or the third-party payer.

Consent (83.8%), Processing (97.9%):

By providing this information, you guarantee that your guarantor(s) consent to the disclosure of this information.

Personal Data (90.7%), Recipient (65.5%), Required Purpose (88.4%), Retention (77.3%):

b) Registration as a landlord and advertisement of the property: In order to create your landlord account, which can be done over the phone or through the website, you need to provide us with your name, surname, email address, phone number, address, ID, the address(es) of the property(ies) you wish to advertise and your bank details (bank account).

Data Controller (99.5%), Personal Data (99.1%):

Contact details The address of SPOTAHOME S.L.U (hereinafter Spotahome) is Calle de Piamonte, 23, 28004, Madrid, and holds the following tax identification code (CIF): B-87004511.

Personal Data (97.1%):

If you opt in for the self service, you shall also provide photos and listing videos from the property(es) you wish to advertise.

Personal Data (99.0%):

In case you want us to issue an invoice, you shall provide us with your Tax ID number (except in the UK) and your postal code, in case you are operating as an individual without a legal entity, or your tax identification number (NIF), your company name and your business address, if you are a business with a registered legal entity or is taxed registered.

Personal Data (97.6%), Required Purpose (84.5%), Scale Non-EU (68.9%):

c) Required documents (only applicable in Germany and France): Additionally, if you register as a tenant and wish to proceed with a booking request in those territories, you shall upload to our platform a proof of identity, residency and solvency.

Data Source (62.0%), Required Purpose (74.6%):

If in order to be eligible you require a guarantor (e.g.

Personal Data (99.7%), Required Purpose (98.4%), Right (96.2%), Third Party (95.4%):

d) Other data or documents requested ad-hocly: In some cases, in order to solve claims, disputes, suspected fraud, payment processing or any other matter related to the provision of the services, either by phone, chat or email, through our own systems or through third parties platforms, we may

request the following information/data: proof of identity (passport or national ID card), proof of residency, legal right to let or rent the property, invoice, IBAN, personal/home address, national ID number, academic documents, police reports, death certificates, bank statements, proof of Spotahome purchase, selfies, video recordings, voice, etc. If in order to be eligible you require a guarantor or a third party has paid for your booking, you shall provide the latter information from the guarantor or the third-party payer.

Processing (84.1%):

that have been adapted, saved or changed in any manner will be refused.

Processing (69.9%):

Spotahome has the right to request the original documents and in the case of electronic documents these must be downloaded from the users relevant third party, attached to an email by upload it from the users downloads directory on their electronic device and sending it to us.

Data Controller (96.2%):

e) Contests, raffles and promotions: We regularly perform commercial actions.

Personal Data (99.3%), Required Purpose (61.5%):

In order to participate, you shall provide us with some personal data.

Processing (98.2%):

The data collected shall vary depending on the action.

Personal Data (95.8%):

f) Work with us: If you wish to apply for any of the job positions published on our website, you shall provide us with your name, last name(s), phone number, email, CV, cover letter and other optional information, such as social networks, promotional videos, etc.

Non-Personal Data (81.1%), Personal Data (99.7%):

The data collected are the following: name, last name(s), email, age, nationality, and satisfaction level.

Data Subject (60.3%), Required Purpose (63.1%):

h) Subletting: In the event that Spotahome finds out that any of the properties listed by the Landlord is being sub-let in the Platform, Spotahome has the right to contact the current Landlord or Owner of the property in order to confirm that there is an express written permission from the Landlord or Owner to sub-let the referred property through Spotahome's Platform.

Personal Data (98.9%):

Likewise, the Owner or Landlord shall provide the contact information, email and phone number, of the sub-lessor when this information is being requested by Spotahome.

Data Source (62.6%):

2.2 Automatically collected data a) Registration as a tenant via Facebook/Google: When you register via Facebook or Google, we collect your name, email, date of birth and gender directly from that platform.

Non-Personal Data (95.7%), Personal Data (95.0%), Retention (93.1%):

b) Google Analytics: While you browse or interact with the content of our website or App, we collect certain dissociated data and information via Google Analytics, such as the IP address of your device, the type of device and browser used, the size of your screen, the geographic location, the language used, websites visited and the time and date they were visited.

Automated Decision Making (86.8%):

For more information on the automatically collected data, please refer to our Cookies Policy.

Consent (61.9%), Required Purpose (97.6%):

3.1 To provide our services To manage the creation of your user account as a tenant and allow you to use or modify it.

Processing (83.2%), Required Purpose (90.8%):

In order to save your search preferences, receive alerts and make booking requests, you need to have a user account and identify yourself as a user.

Required Purpose (93.1%):

Furthermore, to show the landlord that you are the suitable tenant, we give you the option to write a short description about yourself.

Required Purpose (87.9%):

In addition, normally in the case of Germany and France, we may request you to proof your identity, residency and solvency so that the landlord can accept your booking request.

Required Purpose (96.8%):

To manage the creation of your user account as a landlord and allow you to use or modify it.

Required Purpose (93.9%):

In order to manage the advertisements of your property or properties and receive booking requests, you need to have an account and identify yourself as a user.

Personal Data (76.2%), Required Purpose (99.1%):

Furthermore, we need your data to schedule the visit to your property by our Homecheckers team, in case you opt for this service.

Required Purpose (84.7%):

They create digital floor plans, record videos and take photos that are then displayed in our

advertisements.

Recipient (60.3%), Required Purpose (93.6%):

To allow the payment of the booking via our platform, if you are the tenant; and to manage the collection, if you are the landlord.

Consent (70.1%), Required Purpose (95.9%), Scale Non-EU (77.4%):

(Spain and United Kingdom) To enable both parties to easily sign the lease agreement through our platform.

Required Purpose (94.6%):

To get in touch with you in order to provide you with relevant information about your booking request.

Required Purpose (95.3%):

To offer you the best attention and assistance.

Required Purpose (67.8%):

Our Help Center will help you at any time by answering any doubts, addressing your comments and suggestions, or solving your claims.

Required Purpose (88.5%):

To provide you with such help, we need to have access to your personal data.

Required Purpose (96.8%):

To solve claims, help tenants find another property when the booking request has not been accepted by the landlord, and mediate in disputes that may arise between tenant and landlord.

Processing (99.6%), Required Purpose (97.8%):

Our Customer Experience Team collects the relevant information and data to solve claims and mediate in disputes.

Personal Data (77.4%), Processing (93.4%), Required Purpose (97.6%):

3.2 To keep you updated about our news, promotions and contests We shall use your Personal Data to send you news, products and promotions related to Spotahome.

Required Purpose (99.3%), Third Party (93.1%):

3.3 To prevent potential fraud In order to create a trustworthy environment for you, Spotahome, its partners and providers, we may use your personal data for the detection and prevention of fraud and other illegal or unwanted activities.

Required Purpose (97.7%):

Similarly, we may use personal data for risk assessment and security purposes, including the authentication of users and properties.

Organisational Measure (69.3%):

For such purposes, we may have to stop certain bookings or put on hold the requests until we have finished our assessment.

Data Processor (62.0%), Legal Basis (97.6%), Processing (96.3%):

To the extent permitted by applicable law, we may receive additional information about you from third party service providers and/or partners, and combine it with information we have about you.

Personal Data (89.2%), Processing (84.0%):

For instance, we may verify or authenticate all personal/business identifiable data such as your name and last name(s), date of birth, mobile number, address, ID, etc.

Personal Data (74.3%), Processing (78.6%), Third Party (70.8%):

To do so, we will conduct checks against databases and other information sources from third parties such as fraud prevention agencies, telecom providers and identity verification solution providers.

Personal Data (86.2%), Required Purpose (94.4%), Third Party (80.6%):

Similarly, we may verify your mobile number with your mobile provider to prevent SIM swap fraud and we may verify the authenticity of the photos of your properties through third party providers.

Non-Personal Data (77.5%), Required Purpose (84.4%):

Furthermore, we use third parties to process payments or provide billing collection services.

Data Processor (74.9%), Processing (96.7%), Required Purpose (90.8%):

When a payment concern or issue is raised for the payment of your booking at Spotahome by either you or by the holder of the debt / credit card used to make the payment, we need to share certain details related to the booking request with the payment service provider and the relevant financial institution to handle the request.

Personal Data (94.1%):

This may also include a copy of your booking request confirmation or the IP address used to make it and other relevant information.

Recipient (84.2%), Required Purpose (97.0%):

We may share information with relevant financial institutions, if we consider it strictly necessary for fraud detection and prevention purposes.

Non-Personal Data (90.6%), Required Purpose (97.4%):

We also use for fraud prevention purposes the details about how you use and interact with our website, app or services, including the device you use.

Required Purpose (95.5%):

This helps us carry out security and fraud monitoring apart from improving the service you get from

US.

Non-Personal Data (94.8%), Personal Data (98.2%), Required Purpose (88.3%), Third Party (65.0%):

You authorize your wireless operator, to disclose your mobile number, name, address, email, network status, customer type, customer file, customer role , billing type, mobile device identifiers (IMSI and IMEI) and other subscriber status and device details, if available, to our third-party service provider, solely to verify your identity and prevent fraud for the duration of the business relationship between our marketplace and who we digitally introduce you to i.e.

Scale Non-EU (75.7%), Third Party (94.4%):

Specifically: AT&T, Sprint, T-Mobile, US Cellular, Verizon, or any other branded wireless operator a user whose phone is registered in the USA.

Scale Non-EU (65.8%), Third Party (68.0%):

Telus, Bell, Rogers, or any other branded wireless operator a user whose phone is registered in the Canada.

Processing (90.4%), Required Purpose (76.1%), Third Party (91.2%):

3.4 To claim amounts owed to the company In cases of non-payment, the data related to the debt and the user may be communicated to third companies specialized in the recovery of unpaid amounts.

Contract (91.4%), Legitimate Interest (66.4%):

Likewise, the referred third companies are contractually obliged to protect your personal information, having access to it and to carry out the assigned tasks.

Required Purpose (94.4%):

3.5 To improve our service At Spotahome we are constantly working to improve our App and Website.

Required Purpose (95.5%):

This is why we run tests, carry out user interviews, conduct researches and analytical studies, as well as develop new products to improve the quality of our service.

Required Purpose (96.9%):

By doing so, we are able to optimize it, improve its usability, make it more functional and adapt it to your needs.

Data Source (82.2%), Processing (69.3%):

In many occasions, these activities imply the usage of some of your personal data or dissociated data obtained, for example, via Google Analytics.

Required Purpose (73.3%):

Furthermore, through the satisfaction survey, we analyse the existent room for improvement to offer you a better experience and avoid recurring problems or bad experiences.

Required Purpose (94.1%):

3.6 To manage your application in our recruitment processes In order for you to apply for any of the job positions published on our website, and for us to be able to manage the recruitment process, you need to provide some data.

Legal Basis (80.4%):

What is the legal basis for this data processing?

Consent (73.2%):

4.3 Your consent: If you are a user who is registered as a tenant or as a landlord, you have authorised us to process your personal data for the remaining purposes by clicking the box on the registration form.

Consent (74.0%):

In the case of work with us you give consent by filling in the corresponding form.

Required Purpose (88.0%), Retention (97.1%):

In general terms, data required for the provision of the service shall be kept for as long as they are necessary for this purpose or until you expressly request us to delete them.

Authority (82.8%), Legitimate Interest (74.1%), Required Purpose (82.9%), Retention (89.9%):

Nevertheless, such data shall be retained for a period of 6 years at the disposal of public authorities, judges, and courts for determining and defending any possible liabilities arising from the processing.

Legitimate Interest (87.4%):

We may keep some of your personal data to the extent necessary for our legitimate interests such as to detect and prevent fraud.

Retention (84.0%):

Data collected for this purpose shall remain retained for a period of 10 years at the disposal of public authorities, judges, and courts for determining and defending any possible liabilities arising from the processing.

Retention (80.2%):

Data used to send you news and promotions shall be used until you request us to stop using them.

Personal Data (60.7%), Retention (89.6%):

Data regarding your job application in our selection processes shall be kept for a period of 6 months and we shall request your permission to keep them for another 6 months.

Processing (68.1%):

If you do not agree, such data shall be deleted from our system.

Retention (93.8%):

Finally, data required to improve our service shall be kept for a maximum of 1 year.

Processing (67.2%), Required Purpose (86.8%):

6.1 With tenants and landlords In order to manage booking requests and subsequent stays, certain identifying information needs to be shared with other platform users, including your personal data.

Personal Data (67.0%):

This is necessary for the due performance of your contract with us, as indicated below: As a tenant, every time you send a booking request we share certain information about you with the potential landlord, such as your profile and documents proving your identity (such as the so-called national identity card (DNI), residency and solvency.

Personal Data (97.5%):

Once your booking is confirmed, we will share your contact details and your DNI (in the case of Spain) with the landlord.

Personal Data (96.6%), Required Purpose (98.8%):

As a landlord, every time you have a confirmed booking, we share with the tenant your full name, contact details and full address of the property to coordinate the booking.

Contract (61.9%):

All the members of the team have signed the pertinent contract for the processing.

Recipient (67.9%), Required Purpose (83.0%):

6.3 With companies of the SPOTAHOME Group We need to give or allow access to your personal data to certain entities of the Spotahome group for service purposes.

Scale Non-EU (61.5%):

These providers may be located within or outside the European Economic Area (EEA).

Legal Basis (67.5%):

In the case of the USA, we ensure that the entities are attached to the Privacy Shield.

Contract (66.8%), Organisational Measure (62.2%):

For service purposes, such providers have limited access to your personal data to perform certain tasks on our behalf and they are bound by contract to protect and use these data solely in accordance with our instructions.

Contract (61.7%), Legal Basis (64.2%), Organisational Measure (78.0%), Right (67.4%):

To this end, Spotahome has entered into pertinent data processing agreements and verified that

these agreements meet the guarantees to implement adequate technical and organisational measures so that processing is carried out in accordance with the requirements of the GDPR, ensuring the protection of your rights.

Required Purpose (95.5%):

For instance, service providers may help us with the following: To process payments.

Required Purpose (90.2%):

(We are assisted by third parties to process payments, handle payment issues / concerns or provide collection and billing services.

Required Purpose (97.5%):

To verify or authenticate your identity and residency.

Personal Data (98.0%):

(We share with third parties your personal identifiable data.

Personal Data (72.3%):

These checks will place a soft search or footprint on your credit file.

Authority (97.4%), Legal Basis (78.1%), Required Purpose (92.6%), Third Party (72.2%):

It is not a hard footprint which other organisations, such as banks make credit or lending decisions on.) 6.5 Competent Authorities We shall disclose your personal data to government authorities as requested by law or as strictly necessary for the prevention, detection or prosecution of criminal acts and fraud, or the Agencia Tributaria, when mandatory for the compliance with tax obligations, or as otherwise required by law.

Authority (95.7%), Legitimate Interest (68.6%):

We shall have to disclose personal data to the competent authorities to protect and defend our rights or properties or the rights and properties of our collaborators or users.

Organisational Measure (71.4%):

Confidentiality and Security Spotahome makes all reasonable efforts to keep the confidentiality of personal information processed through the Web and the App.

Organisational Measure (70.3%):

We have strict security levels to protect the personal data processed from any inadvertent loss and unauthorised access, processing, or disclosure, considering the state of technology, nature, and risks to which the data are exposed.

Personal Data (99.1%):

However, we shall not be responsible for your use of the data (including username and password) in Spotahome in platforms other than our Web or App.

Legal Basis (92.4%):

In accordance with the applicable legislation, you can exercise the rights detailed in this section free of charge and at any time.

Art. 16 Right to rectification (84.1%):

Rectification: You can request us to modify inaccurate or incomplete data.

Art. 17 Right to erasure (right to be forgotten) (85.4%):

Erasure: You can request us to erase the Personal Data we hold about you (i) when they are no longer necessary for the purpose for which we are using them; (ii) when you withdraw your consent, in the case they are solely processed for such purposes.

Retention (85.2%):

Nevertheless, in certain cases we shall keep your data blocked for a certain period of time due to legal obligations.

Art. 18 Right to restriction of processing (85.7%):

Limitation: You can request us to temporarily restrict the use of your Personal Data (i) when you believe there is any type of inaccuracy in your data, until we verify or update them (please note that in the meantime you shall not be able to use the Service); (ii) when we no longer need your data to fulfil the purposes indicated in the aforementioned section 4 but you prefer us to keep them so that you can exercise or defend yourself against any legal claim; and (iii) when you do not agree with us using your data for any of the purposes listed in section 4.2 of this Privacy Policy, while we assess whether our legitimate interest in Spotahome prevails over your right to oppose to our use of these data.

Automated Decision Making (89.7%):

We inform you that we use automated data processing, therefore there is no option to object.

Authority (94.5%), Lodge Complaint (82.3%):

Lastly, we inform you that you can file a complaint with the competent data protection supervisory authority, which in your case is the Spanish Data Protection Agency.